

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
ANTOINE McCLAURIN,

Plaintiff,

Index No.: 520666/17

-against-

**AMENDED VERIFIED
COMPLAINT**

THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT, P.O. KEVIN NUNEZ,
(Shield No: 23185) and P.O. "JOHN DOE 2"
(fictitious name meant to designate police office
who permitted injury to plaintiff) and THE NEW YORK CITY
TRANSIT AUTHORITY,

Defendants.
-----X

Plaintiff, ANTOINE McCLAURIN, by his attorneys, RASKIN & KREMINS, L.L.P.,
complaining of defendants, upon information and belief, respectfully alleges as follows:

AS AND FOR A FIRST CAUSE OF ACTION

1. That at all times hereinafter mentioned, defendant, THE CITY OF NEW YORK,
was and still is a municipal corporation duly organized and existing under and by virtue of the
laws of the State of New York.
2. That at all times hereinafter mentioned, defendant, THE NEW YORK CITY
POLICE DEPARTMENT, was and still is a municipal corporation duly organized and existing
under and by virtue of the laws of the State of New York.
3. That at all times hereinafter mentioned, defendant, THE NEW YORK CITY
TRANSIT AUTHORITY, was and still is a municipal corporation duly organized and existing
under and by virtue of the laws of the State of New York.

4. That at all times hereinafter mentioned, defendants, P.O. KEVIN NUNEZ, SHIELD NO: 23185 and P.O. JOHN DOE 2", was employed by defendant, THE CITY OF NEW YORK.

5. That at all times hereinafter mentioned, defendants, P.O. KEVIN NUNEZ, SHIELD NO: 23185 and P.O. JOHN DOE 2", was employed by defendant, THE NEW YORK CITY POLICE DEPARTMENT.

6. That at all times hereinafter mentioned, defendants, P.O. KEVIN NUNEZ, SHIELD NO: 23185 and P.O. JOHN DOE 2", was employed by defendant, THE NEW YORK CITY TRANSIT AUTHORITY.

7. That on the 21st day of June, 2017, a Notice of Claim was duly served upon the defendants THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT pursuant to Section 50-H of the General Municipal Law.

8. That on the 22nd day of June, 2017, a Notice of Claim was duly served upon the defendants THE NEW YORK CITY TRANSIT AUTHORITY pursuant to Section 50-H of the General Municipal Law.

9. That plaintiff has complied with all conditions precedent to the commencement of this action, and in particular, within ninety (90) days of this occurrence. Plaintiff has served a Notice of Claim with defendants, more than thirty (30) days have elapsed since the presentation of his claim, thereby the defendant has presumably waived an oral examination of plaintiff pursuant to Section 50-H of the General Municipal Law.

10. That defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, have neglected and/or refused to make adjustments or payment pursuant to plaintiff's claim and that less than one year and ninety (90) days have elapsed since the accrual of the cause of action herein set forth.

11. That at all times hereinafter mentioned, defendants, P.O. KEVIN NUNEZ, SHIELD NO: 23185 and P.O. JOHN DOE 2" were/are employed by defendant, THE NEW YORK CITY POLICE DEPARTMENT and acting within the scope of their employment.

12. That on or about May 6, 2017, at approximately 11:30 P.M. P.O. KEVIN NUNEZ, SHIELD NO: 23185 and P.O. JOHN DOE 2", came to be present at near the vicinity of the L train, Sutter Avenue Rockaway Park platform, in the County of Kings, City and State of New York, during the normal course of his employment with defendants, THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, and/or NEW YORK CITY TRANSIT AUTHORITY.

13. That on or about May 6, 2017, at approximately 11:30P.M., plaintiff was lawfully at/near the vicinity of the L train near Sutter Avenue Station, Rockaway Park platform, in the County of Kings, City and State of New York,

14. That on or about May 6, 2017, at approximately 11:30 P.M., as a result of the wrongful, willful, reckless, careless and negligent acts of defendants herein, their agents, servants and/or employees, plaintiff sustained severe and permanent personal injuries.

15. That the foregoing occurred solely and wholly as a result of the negligence of defendants herein, their agents, servants and/or employees, and without any negligence on the part of plaintiff contributing thereto.

16. That defendants, their agents, servants and/or employees were negligent and careless in hiring, supervising, controlling, maintaining, training, educating, interviewing and investigating their agents, servants and/or employees; in negligently and carelessly failing to direct their agents, servants and/or employees not to use improper and/or excessive force; in negligently and carelessly, willfully and wrongfully causing, permitting and allowing plaintiff to be subjected to assault and battery, traumatized, pushed, shoved, and falsely imprisoned causing injury, emotional and psychological damage; in negligently and carelessly causing, permitting and allowing employees and/or personnel who were negligently trained to use improper and/or excessive force; in negligently and carelessly using improper and/or excessive force; in negligently and carelessly failing to adequately train police officers and/or other personnel for the public's safety, including plaintiff herein; in denying prompt and necessary medical attention; and in being otherwise careless and negligent.

17. That by reason of the foregoing, plaintiff became sick, sore, lame and disabled; plaintiff has received permanent personal, emotional and psychological injuries that will continue for some time to come; plaintiff will expend significant sums of money for required medical attention and aid in an endeavor to be cured; and that plaintiff was caused to suffer great psychological injury, emotional agony and mental anguish and verily believes that same will continue for a long time to come, all to his damage in a sum which exceeds the jurisdictional limits of all lower courts.

AS AND FOR A SECOND CAUSE OF ACTION

18. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs "1" through "17" of the complaint herein with the same force and effect as if set forth herein at length.

19. That defendants, P.O. KEVIN NUNEZ, SHIELD NO: 23185 and P.O. JOHN DOE 2", acting under the color of authority and without provocation, viciously and maliciously deprived medical attention to plaintiff causing him to suffer serious, severe, permanent personal injuries and extreme conscious physical, mental and emotional pain and suffering, and required, and will require, hospitalization, medical care and treatment.

20. That defendants, P.O. KEVIN NUNEZ, SHIELD NO: 23185 and P.O. JOHN DOE 2", acting under the color of authority and without provocation, viciously and maliciously deprived medical care and attention to plaintiff causing him to suffer serious, severe, permanent and extreme conscious physical, mental and emotional pain and suffering, and required, and will require, hospitalization, medical care and treatment.

21. That by reason of the foregoing, plaintiff became sick, sore, lame and disabled; plaintiff has received permanent personal, emotional and psychological injuries that will continue for some time to come; plaintiff will expend significant sums of money for required medical attention and aid in an endeavor to be cured; and that plaintiff was caused to suffer great psychological injury, emotional agony and mental anguish and verily believes that same will continue for a long time to come, all to his damage in a sum which exceeds the jurisdictional limits of all lower courts.

AS AND FOR A THIRD CAUSE OF ACTION

22. Plaintiff repeats, reiterates and realleges each and every allegation contained in Paragraphs "1" through "21" of the complaint herein with the same force and effect as if set forth herein at length.

23. That defendants, P.O. KEVIN NUNEZ, SHIELD NO: 23185 and P.O. JOHN DOE 2", acting under the color of authority and without provocation, viciously and maliciously falsely arrested plaintiff, wrongfully depriving plaintiff of his liberty.

24. That by reason of the foregoing, plaintiff became sick, sore, lame and disabled; plaintiff has received permanent personal, emotional and psychological injuries that will continue for some time to come; plaintiff will expend significant sums of money for required medical attention and aid in an endeavor to be cured; and that plaintiff was caused to suffer great psychological injury, emotional agony and mental anguish and verily believes that same will continue for a long time to come, all to his damage in a sum which exceeds the jurisdictional limits of all lower courts.

AS AND FOR A FOURTH CAUSE OF ACTION

25. Plaintiff repeats, reiterates and realleges each and every allegation contained in Paragraphs "1" through "24" of the complaint herein with the same force and effect as if set forth herein at length.

26. That defendants, P.O. KEVIN NUNEZ, SHIELD NO: 23185 and P.O. JOHN DOE 2", acting under the color of authority and without provocation, viciously and maliciously falsely imprisoned plaintiff, wrongfully depriving plaintiff of his liberty.

27. That plaintiff was conscious of his confinement, did not consent to his confinement, and the confinement was not otherwise privileged or with just or probable cause.

28. That by reason of the foregoing, plaintiff became sick, sore, lame and disabled; plaintiff has received permanent personal, emotional and psychological injuries that will continue for some time to come; plaintiff will expend significant sums of money for required medical attention and aid in an endeavor to be cured; and that plaintiff was caused to suffer great

psychological injury, emotional agony and mental anguish and verily believes that same will continue for a long time to come, all to his damage in a sum which exceeds the jurisdictional limits of all lower courts.

AS AND FOR A FIFTH CAUSE OF ACTION

29. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs "1" through "28" of the complaint herein with the same force and effect as if set forth herein at length.

30. That the aforementioned acts of defendants, under color of law and under color of their authority as employees, agents and/or servants of THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT AND NEW YORK CITY TRANSIT AUTHORITY violated plaintiff's property and liberty interests guaranteed to plaintiff as a citizen of the United States under the Fourth, Eighth and Fourteenth Amendments to the United States Constitution, and are therefore liable pursuant to 42 U.S.C. § 1983.

31. That the aforementioned acts of defendants, P.O. KEVIN NUNEZ, SHIELD NO: 23185 and P.O. JOHN DOE 2", under color of law and under color of their authority as employees, agents and/or servants of THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT AND NEW YORK CITY TRANSIT AUTHORITY, violated plaintiff's property and liberty interests guaranteed to plaintiff as a resident of the State of New York under Article 1, Section 6 of the Constitution of the State of New York as well as violation of The City of New York Human Rights Laws.

32. That by reason of the foregoing, plaintiff became sick, sore, lame and disabled; plaintiff has received permanent personal, emotional and psychological injuries and will continue to be so for some time to come; plaintiff will expend significant sums of money for required

medical attention and aid in an endeavor to be cured; and that plaintiff was caused to suffer great psychological injury, emotional agony and mental anguish and verily believes that same will continue for a long time to come, all to his damage in the sum which exceeds the jurisdictional limits of all lower courts.

AS AND FOR A SIXTH CAUSE OF ACTION

33. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs "1" through "32" of the complaint herein with the same force and effect as if set forth herein at length.

34. That the aforementioned acts of defendants, under color of law and under color of their authority as employees, agents and/or servants of THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT AND NEW YORK CITY TRANSIT AUTHORITY, violated plaintiff's right to equal protection under the law guaranteed to plaintiff as a citizen of the United States under the Fourth, Eighth and Fourteenth Amendments to the United States Constitution, and are therefore liable pursuant to 42 U.S.C. § 1983.

35. That the aforementioned acts of defendants, under color of law and under color of their authority as employees, agents and/or servants of THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT AND NEW YORK CITY TRANSIT AUTHORITY, violated plaintiff's right to equal protection under the law guaranteed to the plaintiff as a resident of the State of New York under Article 1, Section 11 of the Constitution of the State of New York.

36. That by reason of the foregoing, plaintiff became sick, sore, lame and disabled; plaintiff has received permanent personal, emotional and psychological injuries and will continue to be so for some time to come; plaintiff will expend significant sums of money for required

medical attention and aid in an endeavor to be cured; and that plaintiff was caused to suffer great psychological injury, emotional agony and mental anguish and verily believes that same will continue for a long time to come, all to his damage in the sum which exceeds the jurisdictional limits of all lower courts.

AS AND FOR AN SEVENTH CAUSE OF ACTION

37. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs "1" through "36" of the complaint herein with the same force and effect as if set forth herein at length.

38. That by reason of the foregoing acts and/or omissions of defendants in violation of the Eighth and Fourteenth Amendments to the United States Constitution, plaintiff has been forced to bring this lawsuit to enforce 42 U.S.C. § 1983 and as a result thereof has suffered significant economic loss in the form of attorney's fees.

39. That pursuant to 42 U.S.C. § 1988, plaintiff is entitled to reasonable attorney's fees as part of costs.

AS AND FOR A EIGHTH CAUSE OF ACTION

40. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs "1" through "39" of the complaint herein with the same force and effect as if set forth herein at length.

41. That at all times hereinafter mentioned, defendants, without cause or justification, did intentionally inflict emotional distress upon plaintiff, causing plaintiff to suffer mental pain and anguish, emotional trauma and conscious pain and suffering.

42. That at all times herein after mentioned, defendants, without cause or justification, did negligently inflict emotional distress upon plaintiff, causing plaintiff to suffer mental pain and anguish, emotional trauma and conscious pain and suffering.

43. That by reason of the foregoing, plaintiff became sick, sore, lame and disabled; plaintiff has received permanent personal, emotional and psychological injuries and will continue to be so for some time to come; plaintiff will expend significant sums of money for required medical attention and aid in an endeavor to be cured; and that plaintiff was caused to suffer great psychological injury, emotional agony and mental anguish and verily believes that same will continue for a long time to come, all to his damage in the sum which exceeds the jurisdictional limits of all lower courts.

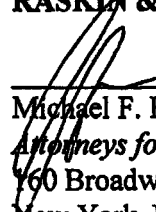
WHEREFORE, plaintiff, **ANTOINE MCCLAURIN**, demands judgement against defendants, on the First Cause of Action, in a sum which exceeds the jurisdictional limits of all lower Courts; demands judgement against defendants, on the Second Cause of Action, in a sum which exceeds the jurisdictional limits of all lower Courts; demands judgement against defendants, on the Third Cause of Action, in a sum which exceeds the jurisdictional limits of all lower Courts; demands judgment against defendants, on the Fourth Cause of Action, in a sum which exceeds the jurisdictional limits of all lower Courts; demands judgment against defendants, on the Fifth Cause of Action, in a sum which exceeds the jurisdictional limits of all lower Courts; demands judgment against defendants, on the Fifth Cause of Action, in a sum which exceeds the jurisdictional limits of all lower Courts; demands judgment against defendants, on the Sixth Cause of Action, in a sum which exceeds the jurisdictional limits of all lower Courts; demands judgment against defendants, on the Seventh Cause of Action, in a sum which exceeds the jurisdictional limits of all lower Courts; demands judgment against

defendants, on the Eighth Cause of Action, in a sum which exceeds the jurisdictional limits of all lower Courts; demands judgment against defendants, and for such other and further relief as to this Court may seem just, proper and equitable.

Dated: New York, New York
January 2, 2019

Yours, etc.,

RASKIN & KREMINS, L.L.P.



Michael F. Kremins, Esq.
Attorneys for Plaintiff ANTOINE McCLAURIN
160 Broadway, Fourth Floor
New York, New York 10038
(212) 587-3434

ATTORNEY'S VERIFICATION

MICHAEL F. KREMINS, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a member of **RASKIN & KREMINS, L.L.P.**, attorneys of record for Plaintiff(s), I have read the annexed **AMENDED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

The reason this verification is made by me and not plaintiff is that plaintiff is not presently in the County wherein the attorneys for plaintiff maintain their offices.

DATED: New York, New York
January 2, 2019



MICHAEL F. KREMINS

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ANTOINE MCCLAURIN,

Plaintiff,

-against-

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POLICE DEPARTMENT, P.O. KEVIN NUNEZ, SHIELD NO: 23185
and P.O. "JOHN DOE 2" fictitious name meant to designate police office
who permitted injury to plaintiff) and THE NEW YORK CITY
TRANSIT AUTHORITY.

Defendants.

SUPPLEMENTAL SUMMONS AND AMENDED VERIFIED COMPLAINT

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